

**ELIZABETH II**



**1972 CHAPTER vii**

An Act to make provision for the discontinuance of a slaughterhouse forming part of the markets undertaking of the mayor, aldermen and burgesses of the borough of Neath; and for other purposes. [11th May 1972]

**W**HEREAS the borough of Neath (hereinafter referred to as "the borough") is a borough under the management and local government of the mayor, aldermen and burgesses of the borough (hereinafter referred to as "the Corporation"):

And whereas it is expedient that the Corporation should be authorised to discontinue the existing slaughterhouse forming part of their markets undertaking situated in Eastland Road in the borough:

And whereas it is expedient that the Corporation should be empowered to borrow for the purposes of this Act:

And whereas it is expedient that the other provisions contained in this Act should be enacted:

And whereas the purposes of this Act cannot be effected without the authority of Parliament:

And whereas in relation to the promotion of the Bill for this Act the requirements of Part XIII of the Local Government Act, 1933 c. 51. 1933, have been observed:



May it therefore please Your Majesty that it may be enacted, and be it enacted, by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows, that is to say:—

Short title.

1. This Act may be cited as the Neath Corporation Act 1972.

Interpretation.

2.—(1) In this Act, unless the subject or context otherwise requires—

“the borough” means the borough of Neath;

“the Corporation” means the mayor, aldermen and burgesses of the borough acting by the council of the borough;

“enactment” includes an enactment in this Act and in any general or local Act, and any order, byelaw or regulation for the time being in force within the borough;

“the markets undertaking” means the markets undertaking of the Corporation.

(2) Any reference in this Act to any enactment shall be construed as a reference to that enactment as applied, extended, amended or varied by, or by virtue of, any subsequent enactment, including this Act.

Discontinuance  
of existing  
slaughter-  
house.

3. The Corporation may discontinue the existing slaughter-house forming part of the markets undertaking situated in Eastland Road in the borough.

Power to  
borrow.

4.—(1) The Corporation may borrow—

(a) such sums as may be necessary for any of the purposes of this Act;

(b) without the consent of any sanctioning authority, such sums as may be necessary for the payment of the costs, charges and expenses of this Act;

1933 c. 51.

and, subject to the provisions of this section, Part IX of the Local Government Act, 1933, shall have effect as if money borrowed under this section were borrowed under that Part.

(2) The Corporation shall repay sums borrowed under paragraph (b) of the foregoing subsection within five years from the date of borrowing.

(3) It shall not be lawful to exercise the powers of borrowing conferred by paragraph (a) of subsection (1) of this section



except in compliance with any order for the ~~time being~~ in force under section 1 of the Borrowing (Control and Guarantees) Act, 1946 c. 58. 1946.

5. All the costs, charges and expenses preliminary to and of Costs of Act. and incidental to the preparing, applying for, obtaining and passing of this Act or otherwise in relation thereto as taxed by the taxing officer of the House of Lords or of the House of Commons shall be paid by the Corporation out of the general rate fund of the borough or out of money to be borrowed under the authority of this Act for that purpose.

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